

In re ESTATE OF CAROLYN SILVEIRA

21PR8424

MOTION TO QUASH BUSINESS RECORDS SUBPOENA

This is one of several actions involving the interests of Carolyn Silveira, deceased, and more particularly three parcels of land and roughly \$500,000 in community assets allegedly embezzled. (There is pending before this Court a request to abate or consolidate various actions.) The legal actions relating to this contentious family dispute include:

Case No	Filed	Substance
20FL44567	02/10/20	Carolyn's petition for dissolution of long-term (60 yr) marriage. RFO re spousal support and property control were denied, but Court ordered David to give Carolyn equalizing payments of \$1,200/month. Carolyn died before any ruling on support or community property. Dismissed .
20EA44667	04/09/20	David's petition for protection (EARO) from son-in-law Rodd. Court granted 3 yr RO w/stay away. RO terminated early due to David's passing.
20DV44888	08/24/20	Carolyn's petition for protection (EARO) from David. No TRO. Carolyn died before hearing. Dismissed .
20EA44889	08/24/20	Carolyn's petition for protection (EARO) from daughter Audrey. No TRO. Carolyn died before hearing. Dismissed .
20PR8354	12/15/20	David's petition to probate Carolyn's "lost" will. Dismissed without prejudice due to lack of publication.
21PR8357	01/07/21	David's petition to quiet title, partition and recover property (joined by Audrey, Manuel, and Dominick). Francille and David Jr. objected. Court appointed Andrew Smith to serve as partition referee. The parties appear to be in agreement that partition by sale is warranted. Pending .
21PR8424	08/23/21	David's petition to probate Carolyn's estate, and for letters of administration with will annexed. David and

		Manuel both filed creditor claims. Manuel filed petition against Francille in her capacity as trustee of Carolyn's separate property trust. Francille filed her own petition for appointment as executor. After David died, Audrey filed petition seeking her own letters of administration. Francille prevailed and appointed executor. Pending.
21PR8425	08/24/21	David's spousal property petition. Francille, Rodd and David Jr. objected. After David died, Audrey substituted in as David's executor. Pending.
21PR8452	11/12/21	Audrey's petition to probate David's estate, and for letters testamentary. The petition was approved, and Audrey was appointed executor. Pending.
21DV45739	12/15/21	Manuel's petition for protection (DVRO) against Francille's husband Rodd. Petition denied.
22CV46053	05/31/22	Francille and David Jr's complaint for partition of Burson residence, and rent, against Audrey in her capacity as trustee of David's trust. Pending.

Before the Court is a motion to quash Manuel's business record subpoenas seeking all records, communications, signature cards, beneficiary designations, and statements for accounts belonging to Carolyn "and/or" David Jr. "and/or" Francille, from (1) Transamerica Corporation, (2) Wells Fargo Bank, (3) Wells Fargo Advisors Financial Network, (4) Pacific Cascade Federal Credit Union, (5) Bank of Stockton, (6) Comenity Capital Bank, and (7) Charles Schwab & Co. The singular basis stated for the motion to quash is that the records sought invade the privacy rights belonging to David Jr. and Francille.

The subject subpoenas were issued by Manuel in 21PR8424. The subpoenas were presumably for the purpose of discovering evidence in relation to Manuel's First Amended Petition to enforce Carolyn's alleged oral promise to gift to Manuel APNs 048-025-031, 048-025-038, and 048-025-040. As alleged, after serving two tours of duty in Iraq, Manuel returned stateside to serve in the Air Force Reserves and work as a pharmacist in Texas. Because Carolyn and David Sr. were unable to effectively work the cattle ranch, they allegedly made him an offer: *leave your life in Texas and come live/work on the Ranch, contributing labor and finances as needed, and we will leave the Ranch to you.* Manuel accepted the offer in 2008, moving to the Ranch. Unbeknownst to Manuel, on 08/02/16 his mother Carolyn executed various deeds moving the Ranch into her separate property revocable trust, and directed those assets elsewhere. Manuel contends that Carolyn (or rather her estate) is liable under §850 and principals of promissory estoppel to make good on that promise. Manuel's creditor